



CAPITAL NORVEX

Institutional Private Lending | Quebec & Ontario

PARTNERSHIP AGREEMENT

PRIVATE REAL ESTATE CO-FINANCING

CONSTRUCTION & INFRASTRUCTURE LOANS

Capital Norvex Inc. — Institutional Version — Quebec & Ontario

PARTNER	_____
TYPE OF FINANCING	Commercial Construction / Infrastructure
CONTRIBUTION AMOUNT	\$ _____ CAD
ANNUAL RETURN RATE	_____ % per year
DATE	_____
FILE No.	_____

Structured Capital. Controlled Ambition.

CONFIDENTIAL — For the exclusive use of the signing parties and their legal advisors



1. INTERPRETATION AND DEFINITIONS

1.1 Interpretation

Unless the context otherwise requires, section headings are inserted for convenience only and do not limit the scope of the provisions. The singular includes the plural and vice versa. Any reference to a statute includes its amendments, restatements or successors. Terms not defined herein have their customary meaning in the commercial real estate lending industry in Quebec.

1.2 Definitions

"Agreement": This Partnership Agreement, all schedules, amendments and ancillary documents incorporated by reference.

"Loan Asset": construction or infrastructure real estate financing file granted by Capital Norvex to third-party Borrower in which Partner participates.

"Capital Norvex": CAPITAL NORVEX INC., corporation constituted under laws of Province of Quebec, acting as exclusive manager and sole administrator.

"Contribution": capital amount Partner commits to deposit and maintain in favour of Capital Norvex to co-finance Loan Asset in Schedule A.

"Disbursement": any advance of funds to Borrower under Loan Asset, including first disbursement before notary and any subsequent progressive disbursement.

"Borrower": any corporation or commercial entity to whom Capital Norvex grants private real estate financing of construction or infrastructure type.

"Borrower Default Event": any payment default or breach by Borrower under loan agreement binding it to Capital Norvex, including non-payment of interest or principal at maturity.

"Partner Default Event": any breach by Partner of its obligations under this Agreement, as defined in Section 10.

"Capital Norvex File Fees": analysis, arrangement and administration fees representing 3% to 3.5% of total Loan Asset amount, collected at first notarial disbursement and belonging exclusively to Capital Norvex.

"Movable Hypothec": security published by Partner at Register of Personal and Movable Real Rights (RPMP) on Loan Asset held by Capital Norvex, pursuant to articles 2660 et seq. of Civil Code of Quebec.

"Interest": annual interest generated by Loan Asset, calculated daily and compounded monthly on disbursed Contribution balance, belonging exclusively to Partner.

"Partner": individual or legal entity identified in Section 2.2, acting as financial co-investor in Loan Asset.

"Sale Proceeds": all net amounts received upon sale of repossessed property or property sold under judicial authority, after payment of selling costs, priority charges and Capital Norvex's legal fees.

"Net Sale Profit": surplus of Sale Proceeds after full repayment of Partner's Contribution, capitalized Interest and Capital Norvex's File Fees.

"RPMP": Register of Personal and Movable Real Rights maintained by Quebec Ministry of Justice.

"Repossession": Capital Norvex's exercise of its right to take mortgaged property in payment or to force its sale under judicial authority, following a Borrower Default Event.

"Norvex Score™": Capital Norvex's proprietary analysis and rating system used for initial assessment, ongoing monitoring and risk management of each Loan Asset.



2. PARTIES

2.1 Capital Norvex Inc. — Exclusive Manager

Corporate Name: CAPITAL NORVEX INC.

Address: _____

Authorized Representative: Yves Barrette

Title: Founder & Director, Private Lending

2.2 Partner

Corporate Name or Full Legal Name: _____

Business Number (BN) or SIN (individual): _____

Registered Address: _____

Authorized Representative: _____

Title: _____

Email: _____

Phone: _____

3. NATURE AND PURPOSE OF THE PARTNERSHIP

3.1 Partnership Spirit — A Relationship of Trust and Transparency

This Agreement is grounded in a genuine partnership relationship built on mutual trust, full transparency and respect for each party's interests. Capital Norvex commits to treating the Partner as a full strategic partner, providing all information needed to monitor their investment safely and in real time. The Partner, in turn, commits to supporting Capital Norvex in achieving its financing objectives with diligence and good faith.

3.2 General Structure

The Partner advances a financial Contribution to Capital Norvex, which is fully deployed by Capital Norvex as private real estate financing of the construction or infrastructure type to a third-party Borrower identified in Schedule A. Capital Norvex acts as exclusive manager, lender of record and sole administrator of the Loan Asset, thereby ensuring the protection of the Partner's rights at every stage.

3.3 Scope — Construction and Infrastructure Loans Only

This Agreement applies exclusively to Loan Assets of the commercial construction and infrastructure financing type, characterized by progressive monthly disbursements based on construction progress. It does not apply to fixed-payment loans (land financing, income property acquisition), which are governed by a separate agreement.

3.4 Independence of the Parties

This Agreement does not create any partnership, trust, joint venture, employment or implied agency relationship between Capital Norvex and the Partner beyond what is expressly provided herein. Each party remains a distinct and independent legal entity.



3.5 Acknowledgment of Norvex Score™

The Partner acknowledges and agrees that Capital Norvex uses its proprietary Norvex Score™ system to analyze, approve, monitor and rate each Loan Asset throughout its term. The Partner accepts decisions made by Capital Norvex based on this system, subject to compliance with this Agreement.

4. FINANCIAL STRUCTURE — REVENUE AND PROFIT SHARING

4.1 Revenue Allocation Table

Revenue Item	Beneficiary
File Fees (3% to 3.5%)	Capital Norvex Inc. — exclusively
Annual Interest (10% to 12%)	Partner — exclusively
Net profit on sale — Repossession only	50% Capital Norvex / 50% Partner (after priority repayment of Partner)
Sale with no net profit — Repossession	Partner recovers 100% of Contribution + capitalized interest. No loss to Partner.
Legal fees (repossession proceedings)	Capital Norvex Inc. — at its own expense

4.2 File Fees — Belong Exclusively to Capital Norvex

The Capital Norvex File Fees, representing **3% to 3.5% of the total Loan Asset amount**, are collected at the first notarial disbursement and belong **exclusively and entirely to Capital Norvex Inc.** The Partner has no entitlement to these fees. They constitute Capital Norvex's compensation for analysis, structuring and administration of the Loan Asset.

4.3 Interest — Belongs Exclusively to the Partner

The annual interest generated by the Loan Asset, at the agreed rate of **10% to 12% per year**, calculated daily and compounded monthly on the disbursed Contribution balance, belongs **exclusively and entirely to the Partner**. Capital Norvex retains no portion of the interest. Interest accrues without interruption from the first to the last day of the Loan Asset, including throughout the entire construction period, the post-construction stabilization period and the period leading up to the banking exit. There is no interest suspension period. Interest is compounded monthly and repaid in full to the Partner upon file closure.

4.4 Repayment Structure — 18-Month Construction Loan

For Loan Assets of the commercial construction type with a standard term of eighteen (18) months, repayment is structured as follows, as set out in Schedule A:

- Construction Phase (Months 1 to 18):** Funds disbursed progressively based on construction progress. Interest compounded monthly. No monthly payments required from Borrower during this phase.
- Post-Construction Phase — Stabilization (approx. Months 19 to 20):** Period following substantial completion allows Borrower to lease up and prepare for banking exit. Interest continues to accrue and compound.
- Monthly Payment Phase (from approx. Month 20 onward):** Borrower begins making monthly payments covering current interest while awaiting permanent bank financing.



4. **Banking Exit — File Closure:** Borrower secures permanent institutional financing and repays Capital Norvex in full: principal, all capitalized unpaid interest and all ancillary fees. Capital Norvex then proceeds with full repayment of Partner.

4.5 Net Sale Profit Sharing — Repossession Only

The 50/50 profit-sharing mechanism between Capital Norvex and the Partner applies exclusively in the event of a Repossession followed by a sale generating a Net Sale Profit. **Priority Order of Distribution of Sale Proceeds:**

1. Legal fees, receiver fees, expert fees and all direct realization costs — borne by Capital Norvex, first priority from Sale Proceeds.
2. Full repayment of Partner's Contribution.
3. Repayment of all capitalized unpaid Interest owed to Partner.
4. Repayment to Capital Norvex of amounts advanced in connection with Repossession.
5. Distribution of residual Net Sale Profit: 50% to Capital Norvex / 50% to Partner.

4.6 No Net Profit — Partner Capital Protection

If Sale Proceeds, after settlement of items 1 and 4 above, generate no Net Sale Profit, the Partner recovers its Contribution and all capitalized Interest in full, and suffers no loss in connection with the sale. Capital Norvex assumes no obligation to guarantee return or capital beyond the rights conferred by the Movable Hypothec and the structure of this Agreement.

5. PARTNER SECURITY — MOVABLE HYPOTHEC AT THE RPMR

5.1 Mandatory Registration Before Any Disbursement

As security for repayment of the Contribution, Interest and share of Net Sale Profit (if applicable), Capital Norvex grants in favour of the Partner a movable hypothec without delivery on the Loan Asset identified in Schedule A, pursuant to articles 2660 et seq. of the Civil Code of Quebec. This security must be registered by the Partner at the RPMR within five (5) business days of signing this Agreement and, in all cases, before the first Disbursement.

5.2 Scope and Limits of the Security

The Movable Hypothec covers Capital Norvex's receivable rights against the Borrower under the Loan Asset. It does not confer upon the Partner any direct real property right over the Borrower's mortgaged property, any right to intervene in file management, or any direct recourse against the Borrower. The security guarantees only Capital Norvex's payment of amounts owed to the Partner under this Agreement.

5.3 Discharge at Maturity

The Partner irrevocably commits to discharge the RPMR registration within ten (10) business days of receiving full repayment of its Contribution, Interest and share of Net Sale Profit. Any failure to discharge within this period entitles Capital Norvex to proceed with the discharge at the Partner's sole expense.

6. EXCLUSIVE AND ABSOLUTE CONTROL OF CAPITAL NORVEX

6.1 Principle of Absolute Control



Capital Norvex holds at all times absolute, exclusive and discretionary control over all aspects of Loan Asset management, including the operational relationship with the Borrower, legal documentation, site inspections and all credit decisions. The Partner does not intervene in this relationship at any time and may not issue direct instructions to the Borrower or its representatives.

6.2 Exclusive Powers of Capital Norvex

Without limiting the foregoing, the following powers belong exclusively to Capital Norvex:

- Approve, decline or modify the terms and conditions of the Loan Asset
- Manage the amounts and schedule of each Disbursement
- Order site inspections, appraisals and expert assessments
- Declare a Default Event and exercise all available remedies
- Decide to proceed with Repossession or a court-supervised sale
- Appoint a Receiver or any other specialized mandatary
- Initiate and direct all judicial and notarial proceedings
- Negotiate and conclude any settlement or arrangement with the Borrower
- Replace the general contractor or any other site participant
- Directly or indirectly manage construction works in the event of Repossession

6.3 Automatic Monthly Reports to the Partner

Simultaneously with each monthly Disbursement authorization request, Capital Norvex automatically provides the Partner with a complete monthly report on the status of the Loan Asset, including: construction progress, the amount of the Disbursement requested, the cumulative disbursed balance, accrued capitalized Interest, and any material information that may affect the value of the Contribution. The Partner is thus fully informed at every stage of the financing. In the event of a Borrower Default Event, Capital Norvex notifies the Partner in writing within five (5) business days.

6.4 Partner Portal — Real-Time Transparency 24 / 7

Capital Norvex provides the Partner with a secure digital portal (PWA — Progressive Web Application), accessible at all times from any device (smartphone, tablet, computer). This portal constitutes a contractual right of the Partner, not merely an administrative convenience. The Partner has real-time access to the following information for all active Loan Assets:

- Disbursed Contribution balance and accrued capitalized Interest
- Complete history of all Disbursements made
- Inspection reports and construction progress updates
- Status of each pending Disbursement authorization request
- File documents: appraisals, permits, insurance, account statements
- Automatic alerts for any material event affecting the file

Real-time transparency is a fundamental and non-negotiable commitment of Capital Norvex to its partners. Capital Norvex commits to keeping this portal fully operational at all times and to integrating any new material information within twenty-four (24) hours of receipt.

7. DISBURSEMENT MECHANISM — PARTNER AUTHORIZATION AND CONTROL

7.1 First Disbursement — Mandatory Before the Notary



The first Disbursement of any Loan Asset is made, without exception, in the presence of a notary designated by Capital Norvex. This requirement is absolute and may not be waived by either party. The notary verifies all conditions precedent, proceeds with registration of the first-ranking real estate mortgage in favour of Capital Norvex, confirms the Partner's Movable Hypothec registration at the RPMR, and releases funds in accordance with Capital Norvex's written instructions. This procedure constitutes the Partner's primary legal protection.

7.2 Progressive Monthly Disbursements — Partner Authorization Required

For each subsequent monthly progressive Disbursement, Capital Norvex sends the Partner a Disbursement authorization request at least five (5) business days before the intended date. This request must include:

- Exact amount of the Disbursement requested and the cumulative disbursed balance
- Independent inspection report certifying construction progress
- Certified Cost Report to Date (CRT) signed by architect or responsible engineer
- Confirmation of compliance with approved budget and schedule
- Partial lien waivers from relevant subcontractors
- Any additional element Capital Norvex deems relevant

7.3 Obligation to Authorize — Performing Loan Asset

When the Loan Asset is in good standing — meaning no Borrower Default Event exists, the approved budget and schedule are being respected, and professional reports are satisfactory — the Partner is legally required to authorize the Disbursement within forty-eight (48) hours of receiving Capital Norvex's request. Any unjustified failure by the Partner to grant authorization within this period is deemed tacit approval and Capital Norvex may proceed with the Disbursement. The Partner may legitimately withhold authorization only in the following limited circumstances:

- Documented existence of a Borrower Default Event not disclosed by Capital Norvex
- Manifest budget overrun without written authorization from Capital Norvex
- Proven and documented fraud or material misrepresentation attributable to Capital Norvex

7.4 Separate Account per Loan Asset

All Contribution funds are held in a separate, identified bank account designated exclusively to the Loan Asset set out in Schedule A. No withdrawal, transfer or set-off is permitted except as provided in this Agreement. Capital Norvex maintains separate accounting per Loan Asset and makes it available to the Partner upon written request.

8. BORROWER DEFAULT — CAPITAL NORVEX NON-ASSUMPTION OF PAYMENTS

8.1 Capital Norvex Does Not Assume Monthly Payments

In the event of a Borrower Default Event, including non-payment of interest or failure to comply with Loan Asset conditions, **Capital Norvex assumes no substitution obligation and does not make payments on behalf of the defaulting Borrower.** Capital Norvex is neither a guarantor nor surety for the Borrower's obligations to the Partner. The Partner's Contribution is an investment carrying risk, protected by the Movable Hypothec and the first-ranking real estate mortgage held by Capital Norvex.

8.2 Capitalization of Unpaid Interest

Interest owed to the Partner that is not collected due to Borrower default is **automatically capitalized** and added to the balance owed to the Partner. Such capitalized Interest itself accrues interest at the contractual rate. All capitalized Interest is repaid to the Partner from Sale Proceeds upon Repossession, as a priority and before any Net Sale Profit sharing.



8.3 Triggering the Legal Process — 60-Day Notice and Partner Consultation

Upon a Borrower Default Event, Capital Norvex and the Partner **work as a team** to determine the best protection and recovery strategy. The Partner has a formal right to be consulted and to submit recommendations to Capital Norvex throughout the process. Capital Norvex retains final decision-making authority, but commits to giving good-faith consideration to the Partner's observations and advice before any major decision. The process unfolds as follows:

1. Within 5 business days of identifying the default, CN simultaneously notifies Borrower and Partner in writing. CN convenes Partner to consultation meeting (in person or by videoconference) within the following 7 days to jointly agree on intervention strategy.
2. CN issues formal default notice to Borrower granting 60 days to remedy, pursuant to applicable Civil Code of Quebec provisions. During this period, CN keeps Partner informed via PWA portal and direct communication.
3. Upon expiry of 60-day period without satisfactory remediation, CN consults Partner again before initiating Repossession proceedings or court-supervised sale, and adopts strategy offering best protection for both parties.
4. CN manages all proceedings with diligence and in best interest of both parties, including site management if necessary, property marketing and distribution of Sale Proceeds according to priority order in Section 4.5.

8.4 Legal Fees of Repossession — Borne by Capital Norvex

All legal fees, lawyers' fees, notary fees, Receiver fees and other costs incurred by Capital Norvex in Repossession proceedings are collected as first priority from Sale Proceeds. The Partner bears no additional costs beyond its initial Contribution. Capital Norvex assumes responsibility for conducting these proceedings diligently and competently.

9. NON-WITHDRAWAL CLAUSE — PARTNER'S IRREVOCABLE COMMITMENT

9.1 Firm and Irrevocable Commitment

The Partner commits in a **firm, irrevocable and unconditional** manner to maintain its Contribution in place for the full term of the Loan Asset, until the Borrower has repaid in full all principal, interest, fees and ancillary amounts — or until Sale Proceeds have been fully distributed in the event of Repossession. No total or partial withdrawal is permitted before this event, except as expressly provided in Section 9.3.

9.2 Prohibition on Assignment and Encumbrance

The Partner may not assign, transfer, pledge or otherwise encumber its rights under this Agreement without the prior written consent of Capital Norvex. Any unauthorized transaction is null and void, and constitutes a Partner Default Event.

9.3 Exceptions — Authorized Early Withdrawal

- Capital Norvex expressly agrees in writing and makes necessary arrangements to fully replace the Contribution with another co-investor or its own funds, without interrupting the Loan Asset financing ;
- Capital Norvex unilaterally decides to repay the Partner and replace it, pursuant to Section 9.4.

9.4 Capital Norvex's Right to Replace the Partner

Capital Norvex reserves the exclusive right, at any time and without justification, to replace the Partner with another co-investor or its own funds. In such case, Capital Norvex remits to the Partner, in a single payment: (i) the full Contribution; (ii) all capitalized Interest accrued to the repayment date. This full repayment releases both parties from all mutual obligations and



requires the Partner to discharge the Movable Hypothec within ten (10) business days. Capital Norvex gives the Partner a minimum notice of ten (10) business days.

9.5 Consequences of Unauthorized Withdrawal

Any unauthorized withdrawal of the Contribution by the Partner constitutes a Partner Default Event, automatically triggering:

- An immediate penalty equal to six (6) months of Interest calculated at the contractual rate on the withdrawn amount ;
- Joint and several liability of the Partner for all direct and indirect damages suffered by Capital Norvex and by Borrowers affected by the financing interruption ;
- Capital Norvex's right to immediately exercise any remedy available at law or under this Agreement.

10. PARTNER DEFAULT EVENTS

The following constitute Partner Default Events, including:

Financial:

- Failure to advance Contribution within agreed timeframe in Schedule A
- Unauthorized total or partial withdrawal of Contribution
- Insolvency, bankruptcy or filing for creditor protection by Partner
- Proposal or arrangement with Partner's creditors

Contractual:

- Unjustified and documented refusal to authorize Disbursement within timeframe set out in Section 7.3
- Unauthorized assignment or encumbrance of rights
- Material breach not remedied within 10 days of written notice
- False representation or inaccurate information that misled Capital Norvex

Legal:

- Seizure or encumbrance of Partner's rights by third-party creditor
- Judicial proceedings initiated directly by Partner against Borrower without CN's prior written authorization
- Unauthorized change of control of Partner (if legal entity)

Upon a Partner Default Event, Capital Norvex may, without notice or delay: claim all amounts owing by judicial or arbitral proceedings, claim damages and exercise any remedy available at law or under this Agreement.

11. REPRESENTATIONS AND WARRANTIES OF THE PARTIES

11.1 Partner's Representations

The Partner represents and warrants to Capital Norvex that, as of the date of signing and at each Disbursement date:

- It is duly incorporated, authorized and in good standing under applicable laws
- It has full legal and financial capacity to enter into this Agreement
- The Contribution comes from lawful, declared funds compliant with applicable regulatory requirements, including anti-money laundering rules
- There is no litigation, claim or encumbrance that could affect its rights hereunder
- Signing this Agreement does not contravene any prior commitment or obligation



- It has obtained all necessary legal and tax advice before signing

11.2 Capital Norvex's Representations

Capital Norvex represents and warrants to the Partner that, as of the date of signing:

- It is duly incorporated and authorized to carry on business in Quebec and Ontario
- The Loan Asset has been analyzed and approved in accordance with its internal credit policies
- The applicable Norvex Score™ has been calculated in good faith
- It will manage the Loan Asset with diligence, competence and professionalism

12. CONFIDENTIALITY

Each party undertakes to treat as strictly confidential all information received from the other party in connection with this Agreement, including information about Borrowers, Loan Assets, financial terms, internal policies and Capital Norvex's proprietary systems (including Norvex Score™). This confidentiality obligation survives termination or expiry of this Agreement for a period of five (5) years. No information may be disclosed to any third party without the prior written consent of the other party, except as required by law, court order or a competent regulatory authority.

13. TERM AND TERMINATION

This Agreement comes into force upon signature by both parties and remains in force until full repayment of the Loan Asset or, in the event of Repossession, until Sale Proceeds have been fully distributed. It may not be terminated early except as expressly provided herein or by mutual written agreement. Termination or expiry does not affect rights and obligations that, by their nature, survive the end of the agreement, including confidentiality, accounting obligations and Movable Hypothec discharge obligations.

14. GENERAL PROVISIONS

Governing Law	Laws of the Province of Quebec (Canada)
Jurisdiction	District of Montreal, Quebec
Assignment	Prohibited without prior written consent of Capital Norvex
Amendments	In writing, signed by both parties
Severability	Any invalid clause does not affect the remainder of this Agreement
Notices	In writing, including certified email or registered mail
Entire Agreement	This Agreement constitutes the entire agreement between the parties
Waiver	No tolerance shall constitute a permanent waiver
Official Language	This Agreement is also available in French, which shall prevail in Quebec

15. SIGNATURES



IN WITNESS WHEREOF, the parties have signed this Partnership Agreement on the date indicated below, having read it in full and obtained such legal and tax advice as they deemed appropriate. The parties acknowledge that this Agreement constitutes a firm and legally binding commitment.

CAPITAL NORVEX INC. — EXCLUSIVE MANAGER

Authorized Representative:

Title:

Date:

Signature:

PARTNER

Corporate Name:

Authorized Representative:

Title:

Date:

Signature:



SCHEDULE A — LOAN ASSET DESCRIPTION

File Name / Borrower	_____
Property / Project Address	_____
Type of Financing	Commercial Construction / Infrastructure
Total Loan Amount	\$ _____ CAD
Partner Contribution	\$ _____ CAD
CN File Fees (3% to 3.5%)	\$ _____ CAD — Capital Norvex
Annual Interest Rate to Partner	_____ % (calculated daily, compounded monthly)
Norvex Score™	_____ / 100
Loan Term	_____ months
Interest Payment Structure	Capitalized — repaid in full at maturity
Date of First Disbursement (Notary)	_____
Expected Maturity Date	_____
Real Estate Mortgage Ranking (Borrower)	1st ranking — Capital Norvex Inc.
Movable Hypothec RPMR (Partner)	In favour of Partner on the Loan Asset
Designated Notary	_____
Profit Sharing on Repossession Sale	50% Capital Norvex / 50% Partner (if net profit)

Initialed — Capital Norvex:

Initialed — Partner: _____

This Agreement is governed by the laws of the Province of Quebec (Canada). The French version shall prevail in Quebec.

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